

Akshay Sadana vs State Of Nct Of Delhi on 5 February, 2024

IN THE COURT OF SH. SUSHIL KUMAR,
ADDITIONAL SESSIONS JUDGE-04, NORTH-DISTRICT,
ROHINI COURTS, DELHI.

CNR No. DLNT01-004817-2023

CR No. 136/2023

AKSHAY SADANA
S/o Sh. Vijay Sadana,
R/o 1092, St. George Avenue,
Rahway, NJ.

.....Revisionist

VS.

STATE OF NCT OF DELHI
Through Public Prosecutor

.....Respondent

Date of institution of revision	:	09.05.2023
Date on which order reserved	:	22.01.2024
Date on which judgment pronounced	:	05.02.2024

ORDER

1. This is a revision petition under Section 397/399 Cr.P.C., filed by the revisionist Akshay Sadana for setting-aside the summoning order dated 21.03.2022 (hereinafter referred to as impugned order), passed by the Court of Sh. Kautuk, Ld. MM-04, North-District, Rohini Courts, Delhi (hereinafter referred to as Ld.Trial Court) in a case bearing Cr. Case No.5282790/2016, FIR No.120/2010 PS Prashant Vihar titled as 'State v Vijay Sadana & Ors.' whereby summoning order dated 21.03.2022 was passed by Ld. Trial Court against the revisionist /accused.

Akshay Sadana Vs State

2. Being aggrieved by the impugned order passed by the Ld. Trial Court, the revisionist/accused has preferred the present revision petition on the following grounds :

i) That the Ld. Trial Court has passed the impugned order in an arbitrary manner with respect to summoning of revisionist for alleged offences under section 415/471/120-

B IPC.

ii) That the impugned order to the limited extent in as much as it pertains to summoning the revisionist under section 415/471/120B IPC is concerned, cannot be sustained in the eyes of law for the primary reason that as per the admitted case of prosecution, the complainant was made aware of

commission of any alleged offence (s) by the revisionist way back on 16.05.2007 by way of reply to the RTI as was given by the Public Informing Officer of the University concerned, wherein despite being aware of the aforesaid, the complainant chose to keep his hands on the said information and did not pursue the same for more than over two years as the first police complaint in relation to commission of alleged offences by the other accused persons and the revisionist was made only on 21.06.2009 at PS Prashant Vihar by the complainant and the said FIR bearing No.120/2010 was consequently registered on 09.04.2010 wherein charge-sheet came to filed on 19.09.2011, the cognizance whereof was taken by the Ld. Trial Court on the same date vide order of even date which Akshay Sadana Vs State is blatant contravention to section 468 of Cr. P.C., as the same was barred by limitation.

(iii) That no cognizance much less summoning of the revisionist under section 415/471/120-B IPC could have ordered for by the Ld. Trial Court for alleged offences under section 415/471/120B IPC in view of the embargo casted upon the taking of cognizance over the said offences by virtue of section 468, therefore, the period of limitation for taking cognizance of the said offences under section 415/471 IPC as provided under section 468 (2) (b) and (c) of Cr. P.C. is one year and three years respectively, thus, given the aforesaid admitted factual position of the present case, wherein the knowledge of commission of offence, if any, was made known to the complainant way back in May, 2007, taking of cognizance of the revisionist for such alleged offences on 21.03.2022 by the Ld. Trial Court cannot by any stretch of imagination be deemed fit as if at all, assuming without admitting or prejudicing the case of the revisionist, the cognizance for offences under section 415/471 IPC could have been taken, then the same had to be taken by the year 2008 in as much as it pertains to alleged offence under section 471 IPC, however, in the present case, the cognizance over such offences was taken on 19.09.2011 when the charge-sheet was filed and the revisionist was further summoned for the said alleged offences vide the impugned order for alleged offences Akshay Sadana Vs State under section 415/471 read with 120-B IPC in utter disregard of the settled proposition of law.

iv) That the law as regards the commencement, computation and calculation of period of limitation is well settled and elucidated under section 469 Cr. P.C., wherein sub clause (b) specifies in unequivocal terms that in cases where date of commission of offences was not known to a person aggrieved by such commission of offence of to any police officer, then the period of limitation for taking cognizance over such offences is to be commenced from the first day on which such commission of offences comes to the knowledge of such person aggrieved or to any police officer which is earlier. That in the present case, the fact of date of knowledge of commission of any alleged offence by the accused persons / revisionist was made known to the Complainant as per its own admitted case on 16.05.2007.

(v) Thus, the period of limitation for taking cognizance of the said alleged offence was to be construed, computed and calculated from 16.05.2007 which for the purpose of Section 415 IPC expired on 16.05.2008 and for the purposes of Section 471 IPC expired on 16.05.2010. However, in the present case, the cognizance over the said alleged offences was taken by the Ld. Trial Court on 19.09.2011 which is clearly barred by limitation.

Akshay Sadana Vs State Therefore, the revisionist could not have been summoned for such alleged offences by the Trial Court vide its impugned order in as much as it pertained to the said limited extent for alleged commission of offences under section 415/471/120-B IPC.

vi) That the Ld. Trial Court while passing the impugned order has summoned the revisionist for alleged offences under section 120-B IPC, thus, in the present case, wherein primarily offences under section 415/471 IPC are not attracted there arises no question of any offence under section 120-B IPC having been made out qua the revisionist as the same cannot exist in isolation in the absence of any substantive offence having been carved out against the revisionist. Thus, the impugned order merits to be set aside in as much as it pertains to summoning of revisionist for alleged offences under section 415/471 read with 120-B IPC is concerned.

(vii) Because the Ld. Trial Court, while having dropped the offences of aggravated form of forgery under section 467/468 IPC qua the revisionist vide its order dated 21.03.2022 has founded its reasoning on the ground that in order to attract an offence of forgery of documents it is imperative that the authorship of the said alleged offending document (s) is to be ascribed to the accused with prima facie evidence on record corroborating the same, however, Akshay Sadana Vs State since both the said pre-requisites were not met in the said FIR case, the offences or aggravated forms of forgery were dropped by the Ld. Trial Court qua the revisionist so also other accused persons, however, while doing so, Ld. Trial Court, in contradiction to its own finding and reasoning summoned the revisionist for framing for offences under section 471 IPC despite the fact that the no offence of forgery has been committed by the revisionist. Therefore, the summoning of revisionist for offence under section 471 IPC is legally not tenable.

(viii) Because this Hon'ble Court vide order dated 06.08.2022 as passed in Crl. Revision No.106/2022 titled as Vijay Sadana & Ors. Vs State of NCT of Delhi has been pleased to set aside the said impugned order to the limited extent in as much as it pertained to summoning of other accused persons namely Vijaya Sadana, Abha Sadana, Ankita Wadhwan and Naveen Wadhawan under section 415/471/120-B IPC in view of the fact that Ld. Trial Court could not have summoned the said accused persons vide impugned order for the offences punishable under section 415/471/120-B IPC as the same were barred by limitation and hit by section 468 of Cr.P.C., hence, since the case of the revisionist herein is at party with the aforesaid accused persons.

Akshay Sadana Vs State

3. It is, therefore, prayed on behalf of revisionist/accused that the impugned order dated 21.03.2022, passed by the Ld. Trial Court, may kindly be set-aside.

4. On the other hand, Ld. Addl PP for state / respondent has vehemently opposed the present revision petition. It is argued by Ld. Addl PP for state / respondent that the impugned order passed by the Ld. Trial Court is correct, detailed and well reasoned and that there is no merit in the present revision petition, hence the present revision filed by revisionist is not maintainable and same is liable to be dismissed.

5. This Court has given thoughtful consideration to the arguments advanced by Ld. Counsel for the revisionists/ accused persons as well as Ld. Addl PP for state / respondent.

6. Trial Court Record has been summoned by this Court.

Same has been perused. Perusal of the Trial Court Record shows that vide the impugned order dated 21.03.2022, the Ld. Trial Court has observed that prima facie case under section 415/471 IPC read with section 120B IPC is made out against the accused persons including the present revisionist. It is pertinent to mention that the other accused persons namely Vijay Sadana, Abhay Sadana, Ankita Wadhawan and Naveen Wadhawan had preferred revision petition against the impugned order passed by Ld. Trial Akshay Sadana Vs State Court and vide order dated 06.08.2022, my Ld. Predecessor Sh. Shivaji Anand, Ld. ASJ-04, North- District, Rohini Courts, Delhi, had allowed their revision petitions and set-aside the impugned order dated 21.03.2022 qua the above-named accused persons only.

7. Perusal of the Trial Court Record shows that it is not in dispute that the false copy of MBA Degree came into knowledge of revisionist on 16.05.2007 through an RTI. It is further not in dispute as per the Trial Court Record that the first representation was made to concerned SHO on 21.06.2009 i.e., after a period of about two years and one month. It is further not in dispute that subsequently the present FIR was registered on 09.04.2010 under section 419/420/467/468/471/120B IPC.

8. Section 415 IPC is punishable under section 417 IPC and the same prescribes punishment for one year or fine or with both while section 471 IPC prescribed punishment as forgery of such documents. It is pertinent to mention that sub-section (2) of 468 Cr. P.C, states that the time limit for taking cognizance is one year if the offence is punishable with imprisonment for a term not exceeding one year. The said section further states that time limit for taking cognizance is three years if the offence is punishable with imprisonment for a term exceeding one year but not exceeding three years.

Akshay Sadana Vs State

9. In the present case, Ld. Trial Court has observed in the impugned order that the offences punishable under section 467 and 468 of IPC are not made out on the ground that there were no seizure of original documents and only photocopies of documents were seized from the revisionist. The punishment under section 471 IPC relates to section 465 IPC which prescribes punishment for two years or fine or with both. In the present case, the first representation was given to SHO on 21.06.2009 despite the fact that the complainant was completely aware regarding the alleged forgery of documents by way of RTI on 16.05.2007. Hence, the limitation period prescribed under section 468 Cr. P.C., is clearly applicable to the present case i.e., for the offences punishable under section 415 IPC. The limitation period is also applicable for the offence punishable under section 120-B IPC which is also beyond limitation period in the present case. Further, the charge for the offence punishable under section 471 IPC is also not made out as the offences punishable under section 467/468 IPC have been dropped against the revisionist.

10. In view of the above discussion, this Court is of considered view that revisionist should not have been charged for the offences punishable under section 415/471 read with section 120B of IPC, hence, the impugned order dated 21.03.2022 passed by Ld. Trial Court is hereby set-aside.

Akshay Sadana Vs State

11. A copy of this order be made available to both the parties and be also sent to the Ld. Trial Court along with the TCR.

12. Revision file be consigned to Record Room after due compliance.

Pronounced in open Court on this 05th of February, 2024 (SUSHIL KUMAR) Additional Sessions Judge-04, North District: Rohini Courts, Delhi.

Akshay Sadana Vs State